KEVIN D. TURNAGE, COMPLAINANT vs. XAVIER BECERRA, SECRETARY U.S. DEPARTMENT OF HEALTH AND HUMAN SERVICES, AGENCY	HHS-IHS-0296-2023 AFFIDAVIT FOR EEOC APPEAL 2024004239

AFFIDAVIT

I, Kevin D. Turnage, make the following statement freely and voluntarily to the U.S. Equal Employment Opportunity Commission for the purpose of beginning an appeal in HHS-IHS-0296-2023, appeal number 2024004239.

BACKGROUND

The Agency issued a Final Decision on July 11, 2024. The Agency accepted for investigation the following claims made by Complainant Kevin Turnage:

1. Complainant alleges that the Agency failed to timely process his Family Medical Leave Act (FMLA) paperwork filed on or about January 2023.
2. On or about March 2, 2023, Complainant alleges he received a low PMAP score.
3. Complainant alleges that on or about March 21, 2023, he was placed on administrative leave, escorted out of the facility by security, and had his system access removed.
4. Complainant alleges that on or about April 2023, he was reassigned and placed on a 120-day detail.
5. Complainant alleges he was subjected to a hostile work environment, including but not limited to: a. Upon reassignment, Complainant alleges he was denied access to the Men's restroom. b. Upon reassignment, Complainant alleges he was not provided office keys. c. Upon reassignment, Complainant was placed in an undesirable location.

Additional screenshots and emails from Dr. Krumenacker are attached.

REBUTTAL TESTIMONY

I, Kevin Turnage, make the following rebuttal statement to the testimony of the responding agency officials Candace Lee, Debra Ward Lund, Jason White, and Brandi Benjamin.

KDT

Incorrect Information in the Final Decision

The Final Decision inaccurately states that four other nurses filed claims against me. In fact, I, Kevin Turnage, and four other nurses filed hostile work environment claims against another nurse who allegedly heard the comment at issue. This nurse was neither listed as a witness nor interviewed during the investigation. This discrepancy undermines the credibility and thoroughness of the investigation process.

Hostile Work Environment and Tampering with Witnesses

Documents available from Witness-1, including emails, indicate that she was threatened and witnessed tampering by the agency officials involved. These documents were not adequately considered in the decision, which fails to address the serious nature of these allegations.

Timing of the Hostile Work Environment

The decision dismisses the hostile work environment claim, arguing that the length of time between the initial incident of sexual harassment and subsequent events was too long to be relevant. However, the hostile work environment only became intolerable after I received a card from the Chief Nursing Officer (CNO), which significantly exacerbated the stress and led to medical leave. The decision does not adequately account for the cumulative effect of these events over time.

Multiple Investigations and Affidavits

The decision also fails to address the procedural irregularities in handling the three separate claims. The agency required multiple interviews and affidavits from me, despite having already provided detailed affidavits. This repeated reinvestigation suggests an attempt to undermine my credibility rather than seek the truth.

Statutory Deadlines for Claim 1

The agency did not meet the statutory deadlines for processing Claim 1 regarding the Family and Medical Leave Act (FMLA) paperwork. The regulations stipulate specific timelines for processing such claims, which were not adhered to in this case. The Final Decision acknowledges a delay in processing the FMLA paperwork but fails to address its impact adequately. This delay is a clear procedural violation that affected my ability to manage my medical condition and work responsibilities effectively.

Discrepancies Between Affidavits

There are notable discrepancies and omissions between the two affidavits from Ward-Lund and Lee. Lee downplays the severity and perception of her actions, while Ward-Lund provides a more procedural and formal recounting, indicating responsiveness to my complaints. Additionally, the witness statement by Krumenacker highlights potential gaps in communication and interpretation of events, revealing inaccuracies in the original statement drafted by RMO-1A. These differences underscore the need for a thorough reconsideration of the Final Agency Decision, as they significantly impact the investigation's credibility and fairness.

KDT

Threat Allegation

RMO-1A claims that the alleged threat by me was heard by a nurse. However, the only witness was Ashley Krumenacker, RPh, a Pharmacist, not a nurse. The name of the nurse was never provided, nor was any nurse interviewed. This omission further questions the thoroughness and fairness of the investigation.

Comparison and Contrast: Rebuttal vs. Affidavits

Overview: My rebuttal affidavit challenges the testimonies provided by several agency officials, including Candace Lee, Debra Ward Lund, Jason White, and Brandi Benjamin. I provide detailed counter-arguments and additional context to dispute the officials' statements regarding my claims of discrimination, harassment, and procedural issues with FMLA paperwork and PMAP scores.

Key Points of Discrepancy:

1. **FMLA Paperwork:**
   - **Rebuttal:** I assert that I submitted a complete FMLA certification on January 26, 2023, which was improperly handled by my supervisor, Brandi Benjamin. She demanded illegal modifications to the certification, directing me to change a legal medical record signed by a medical practitioner, delaying the approval process until April 11, 2023.
   - **Affidavits (Lee, Ward Lund, Benjamin):** These officials argue that the delays were unrelated to discriminatory factors and claim procedural issues with the paperwork.
2. **Performance Appraisal (PMAP):**
   - **Rebuttal:** I contend that my PMAP score was manipulated and that Candace Lee played a significant role in this. I challenge the credibility of the process and accuse Lee of retaliatory actions linked to my complaint of sexual harassment.
   - **Affidavits (Lee, Ward Lund):** Lee denies threatening me with a low PMAP score and asserts that the score adjustments were due to a missing rating element. Ward Lund supports this narrative, claiming the changes were procedural errors.
3. **Sexual Harassment and Retaliation:**
   - **Rebuttal:** I detail incidents of sexual harassment by Candace Lee and subsequent retaliatory actions, including my reassignment and placement on administrative leave. I question the integrity of the investigation and the motives behind these actions.
   - **Affidavits (Lee, Ward Lund):** Both officials argue that my reassignment and administrative leave were unrelated to any retaliation or harassment. However, it is more than coincidental that this allegedly occurred within hours of elevating the sexual harassment claim to IHS headquarters via email.
4. **Hostile Work Environment:**
   - **Rebuttal:** I describe a hostile work environment exacerbated by discriminatory treatment based on my race, color, sex, and age. I provide specific instances of being denied access to facilities and office keys and being placed in an undesirable location.
   - **Affidavits (Various Officials):** The officials generally deny these allegations, attributing any negative experiences to standard procedural issues and not to discrimination or hostility.
5. **Witness Testimony (Ashley Krumenacker):**
   - **Rebuttal:** I point out that Krumenacker refused to sign a witness statement that inaccurately portrayed her observations, further undermining the credibility of the agency's investigation.

KDT

- **Affidavits:** The officials rely on the disputed witness statement to support their narrative, failing to address the discrepancies highlighted by Krumenacker.

Detailed Comparison:

1. **Processing of FMLA Paperwork:**
   - **Turnage:** Asserts deliberate and discriminatory delay in processing my paperwork, citing specific interactions with Brandi Benjamin and highlighting the improper demand for document alterations.
   - **Lee, Ward Lund, Benjamin:** Deny any discriminatory intent, emphasizing procedural errors and incomplete paperwork as the cause of delays.
2. **PMAP Score Manipulation:**
   - **Turnage:** Claims my PMAP score was unfairly lowered and then inconsistently adjusted, suggesting retaliatory motives.
   - **Lee, Ward Lund:** Argue the score adjustments were due to a simple omission and were handled according to procedure, denying any link to retaliation.
3. **Sexual Harassment Allegations:**
   - **Turnage:** Details specific incidents and alleges a pattern of harassment and retaliation by Candace Lee.
   - **Lee, Ward Lund:** Downplay the incidents, suggesting my allegations are unfounded and that any actions taken were procedural, not retaliatory.
4. **Hostile Work Environment:**
   - **Turnage:** Provides examples of discriminatory treatment and a hostile work environment, tying these to my protected characteristics and prior complaints.
   - **Various Officials:** Refute these claims, attributing my experiences to normal procedural challenges and not to any form of discrimination or hostility.
5. **Witness Statement (Krumenacker):**
   - **Turnage:** Highlights the inaccuracy of Krumenacker's initial statement and her refusal to sign it, indicating flaws in the agency's investigation.
   - **Officials:** Utilize the disputed witness statement without addressing the inconsistencies or Krumenacker's refusal to sign.

Conclusion

Given these substantial issues, I respectfully request a thorough reconsideration of the Final Agency Decision. The inaccuracies in the report, the failure to address witness tampering, the procedural irregularities, and the statutory deadline violations significantly impact the fairness and integrity of the investigation. I urge the appropriate authorities to review the provided documents and reconsider the decision considering the evidence and procedural concerns highlighted.

I have read and typed the above statements consisting of [4] pages and under the penalty of perjury, it is true and correct to the best of my knowledge and belief. I have signed or initialed each page. I understand that the information that I have given is not to be considered confidential, that it may be shown to the interested parties, and that it may be used in evidence.

Kevin D. Turnage

Witness Statement
Ashley Krumenacker

It was reported that employee Kevin Turnage SCN of PCMC had stated threatening remarks about one of his employees Tonie Greve, in which he stated "Someone needs to get her out of my clinic or I'm going beat the fucking shit out her.".

Ashley Krumenacker 3/21/23 at 0845

I met with Ashley in her office at approximately 0845. I requested permission to speak with her about her interaction with Kevin Turnage earlier this morning. She stated that she was agreeable. I had asked to walk me through the morning of the incident.

She states that she came in early to give an in-service about standing orders to the CMAs. She states that she came in about 0745 and noticed that Kevin's office door was open, but that he wasn't there. She decided to sit in the office and wait for him to arrive. He arrived shortly after and heard a discussion between Kevin Turnage and Brandi Benjamin about the current staff concerns for the clinic. Ashley stated that Kevin and Brandi were discussing call offs and some staff leaving because they were stick or had to go to appointments later that day. I the investigator asked if there was discussion about Tonie Greve, which she stated yes. I, the investigator asked, if there was any threat of violence toward her? Ashley remained quiet and so I asked if given made the statement above. Ashley stated, yes, I heard him say that and that she was "Surprised by his comments."

U. S. DEPARTMENT OF HEALTH AND HUMAN SERVICES
INDIAN HEALTH SERVICE

Warnings and Assurances to Employee Required to Provide Information

This concerns a Management Inquiry into allegations of misconduct and/or conduct that affects your capacity to carry out official duties. The Management Inquiry is being performed to determine your knowledge or information regarding the misconduct of another employee. The authority to conduct this investigation is contained in the Department's Standards of Conduct, 45 CFR PART 73 and Subpart L – Disciplinary Action; the Indian Health Service Circular 95-11, Sexual Harassment Policy; Part 1, Chapter 16, Prevention of Workplace Harassment Policy; and other IHS authority. If you are a non-bargaining unit employee, you are entitled to have an attorney represent you during the investigative process. If you are a bargaining unit employee, you are entitled to have a union representative or an attorney represent you during the investigative process.

The purpose of this interview/investigation is to obtain information which will assist in the determination of whether some activity occurred for which administrative action is warranted.

You will be asked specific questions regarding whether the allegations of misconduct raised affect your capacity to perform your official duties, or to provide information regarding another employee's performance or conduct. You have a duty to reply to these questions. If you refuse to answer or fail to reply fully and truthfully, disciplinary action, including dismissal, may be imposed against you. See 18 U.S.C. § 1001.

Title 18 § 1001 - Statements or entries generally (reprinted in part)

(a) Except as otherwise provided in this section, whoever, in any matter within the jurisdiction of the executive, legislative, or judicial branch of the Government of the United States, knowingly and willfully-

(1) falsifies, conceals, or covers up by any trick, scheme, or device a material fact;

(2) makes any materially false, fictitious, or fraudulent statement or representation; or

(3) makes or uses any false writing or document knowing the same to contain any materially false, fictitious, or fraudulent statement or entry;

shall be fined under this title or imprisoned not more than 5 years.

The answers you furnish and any information or evidence resulting therefrom may be used in the course of disciplinary proceedings which could result in disciplinary action, including dismissal for the employee against whom the allegations of harassment have been raised.

You are further informed that during a Management Inquiry, all related information/reports of allegations of misconduct, sexual harassment, non-sexual harassment, and identity of the employee alleging violations of this policy will be maintained on a confidential basis to the greatest extent possible. You are not to disclose any information, either verbally or by any written communication, including e-mail and social media, to anyone unless it is authorized by an Indian Health Service official.

ACKNOWLEDGMENT

I have read and understand my rights and obligations as set forth above.

Employee's signature Date

Witness Date

Investigator Date

Gmail

Kevin Turnage <kdturnage@gmail.com>

Fwd: Fw: Statement

1 message

Ashley Krumenacker <ashley.n.krumenacker@gmail.com> Fri, Mar 24, 2023 at 5:02 PM
To: "kdturnage@gmail.com" <kdturnage@gmail.com>

From: Krumenacker, Ashley (IHS/PHX/PIMC) <Ashley.Krumenacker@ihs.gov>
Sent: Wednesday, March 22, 2023 2:17 PM
To: White, Jason (IHS/PHX/PIMC) <Jason.White@ihs.gov>
Subject: Re: Statement

Hi Jason,

I did not experience an emotion while in Kevin's office - I was neutral. As I states repeatedly in my statement, I did not pay close attention to the conversation between Kevin and Brandi, and thus, did not have a feeling one way or anther about what was happening. I thought to myself, "I should not be here for this," as the operation of that clinic does not pertain to me but that is it.

V/r,

Ashley Krumenacker PharmD, BCPS, MPH
LT, United States Public Health Service
Clinical Pharmacist, Immunization Director
Phoenix Indian Medical Center

From: White, Jason (IHS/PHX/PIMC) <Jason.White@ihs.gov>
Sent: Wednesday, March 22, 2023 11:45 AM
To: Krumenacker, Ashley (IHS/PHX/PIMC) <Ashley.Krumenacker@ihs.gov>
Subject: RE: Statement

Hey Ashley

Megan told me that she reached out to you, I'm sorry that are caught up in this investigation. I will put together the statement based off what you wrote below. The only thing that I did want to verify is how the situation made you feel.

Again my apologies for any undue stress that this might of caused.

From: Krumenacker, Ashley (IHS/PHX/PIMC) <Ashley.Krumenacker@ihs.gov>
Sent: Wednesday, March 22, 2023 10:36 AM
To: White, Jason (IHS/PHX/PIMC) <Jason.White@ihs.gov>
Subject: Re: Statement

I have provided you with my statement, there is no further reason for me to be involved.

V/r,

Ashley Krumenacker PharmD, BCPS, MPH
LT, United States Public Health Service
Clinical Pharmacist, Immunization Director
Phoenix Indian Medical Center

From: White, Jason (IHS/PHX/PIMC) <Jason.White@ihs.gov>
Sent: Wednesday, March 22, 2023 9:18 AM
To: Krumenacker, Ashley (IHS/PHX/PIMC) <Ashley.Krumenacker@ihs.gov>
Subject: RE: Statement

Please contact Lashley Hatch and he can advise you on how to proceed.

From: Krumenacker, Ashley (IHS/PHX/PIMC) <Ashley.Krumenacker@ihs.gov>
Sent: Wednesday, March 22, 2023 6:04 AM
To: White, Jason (IHS/PHX/PIMC) <Jason.White@ihs.gov>
Subject: Re: Statement

Hello, Jason –

The statement you have drafted does not accurately reflect our conversation nor what I witnessed yesterday. I would like to make a few corrections for the record.

I arrived to work early this morning as I had previously arranged to meet Kevin at 0745. Kevin was to introduce me to a CMA so I could shadow said CMA and witness, generally, how CMAs input standing orders. Kevin was not in his office when I arrived. As the door was open and the light was on, I decided to wait in Kevin's office, as I have done so before, for his return.

Kevin returned and I gathered it was not a good time to talk. Before I could get up and leave Brandi Benjamin came to Kevin's door and stood in the doorway the entire conversation. I overheard the two discussing the closing of the clinic due to staffing shortages. As the operation of the clinic does not concern me, I did not pay close attention to the specifics of Kevin and Brandi's conversation. I was talking to myself thinking of how I can exit the room. While I did hear Tonie Greve's name mentioned, I do not recall hearing what was specifically said pertaining to Tonie. I do not recall a threat of violence being made by Kevin nor do I recall Kevin stating that he was "going to beat the fucking shit out [of Tonie]."

In the witness statement you drafted, you stated that I responded affirmatively when asked whether Kevin stated, "Someone needs to get [Tonie] out of my clinic or I'm going to beat the fucking shit out of her." I did not respond affirmatively. Rather, I stated that he may have made such statement but I was not positive as, again, I was not paying

close attention to Kevin and Brandi's conversation. I further stated that, if Kevin had made a comment like that, I would be shocked.

I am uncomfortable signing the Written Assurance Statement Form that you attached to your email. I was to be informed of my rights and duties and presented the opportunity to consult with an attorney before being questioned by an investigator about the misconduct I allegedly witnessed. This form was not presented to me at that time prior to our discussion therefore proper policy was not followed. I do not feel comfortable signing at this time.

V/r,

Ashley Krumenacker PharmD, BCPS, MPH
LT, United States Public Health Service
Clinical Pharmacist, Immunization Director
Phoenix Indian Medical Center

From: White, Jason (IHS/PHX/PIMC) <Jason.White@ihs.gov>
Sent: Tuesday, March 21, 2023 12:09 PM
To: Krumenacker, Ashley (IHS/PHX/PIMC) <Ashley.Krumenacker@ihs.gov>
Subject: Statement

Hello

Per our conversation this morning please see the written statement. Read over it and make any corrections that you do not agree with. Please sign both the Witness statement and the written assurance Statement.

Jason White BSN, RN, CEN, CPEN, CCRN, CFRN

Nurse Consultant & RN Retention and Recruitment Analyst

Nursing Administration

Phoenix Indian Medical Center

602-581-6331

Do you care to be the layer of the bricks that seal your fate? Or would you rather be the architect of what we might create?

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11:49 97

4

AK

Ashley

Office: 602-581-6581
Cellular: 480-404-8575

On Administrative Leave and no haven't seen anything they took all government property and blocked all my access

Interesting

I'm not sure if you remember the comment you made about someone getting Tonie out of the clinic but they are trying to exaggerate what you said. And honestly I don't remember

Yeah I said specifically the exact same thing I said in the email I had sent "someone needs to get her out of my clinic, I need a Clinical Care Nurse not an administrative nurse." I have them on the sexual harassment by Candace so they are trying to invent something to make me go away.

I appreciate your response and you standing up to him.

He sucks. He shouldn't have come over and just talked to me. And telling me to get the corps involved... I was fuming. Like this is my career he wants to mess wish. Idc I'll leave IHS before I play these politics.

That is what it is politics

iMessage

11:47 97

4

AK

Ashley

Mar 21, 2023 at 11:30

Well, I told you they were going to fire me! I'm on 10 days of administrative leave while they complete an investigation

Omg

They took all my keys, my badges, everything

Wtf

I will not lay down and roll over

NO WAY!

They don't care about the patients

Nope

Who is gonna run the clinic, Jason?

I assume Brandi, but I have no idea

Oh boy

We'll take the time you have and do what you need to do to protect yourself

Which is why I wanted you to have my personal cell number because they took the phone I would not have been

iMessage

11:48 97

4

AK

Ashley

Which is why I wanted you to have my personal cell number because they took the phone I would not have been able to contact you

Yes thank you

I will keep you in the loop as soon as I find things out

Okay thanks

Mar 24, 2023 at 16:50

So they slipped up in an email response to me, so at least I know why. Tonie Greve filed a discrimination complaint because of the conversation at the board about her assignment. Funny how I filed a complaint against her on December 22, 2022 and 4 other employees filed earlier and all of us had to continue to work with her and by their own admission they have not began investigating my complaint yet. Talk about a double standard.

I have an email thread with Jason as well that also makes them look bad...

I think a lawyer might even call it witness tampering

Please share if comfortable

iMessage

11:48

97

4

AK

Ashley

Please share if comfortable kdturnage@gmail.com

Okay gonna be two emails

Don't tell them I sent it to you lol

Right Before his message at 11:45, Megan stopped by my office to talk to me... which prompted his other message

Never would want it so if it gets legal I can see if they try and hide them

They tried to drag me into it

Oh yea they will try to cut me out bc i said I felt neutral, im sure they were trying to get me to say I felt threatened

Did they fire you or are you on administrative leave? Did you see the email Brandi sent out after it happened to PCMC staff?

Hello PCMC Team,

Kevin Turnage, PCMC Supervisory Clinical Nurse is on leave starting today. He will return on 04/02/2023. During his absence I will be covering for him. I know the clinic runs well and you are all very self-sufficient, but I would like to be there to provide support so I will be working

iMessage

11:48 97
Photo Done

Hello PCMC Team,

Kevin Turnage, PCMC Supervisory Clinical Nurse is on leave starting today. He will return on 04/02/2023. During his absence I will be covering for him. I know the clinic runs well and you are all very self-sufficient, but I would like to be there to provide support so I will be working out of Kevin's office.
I have attached an Appendix C so you are aware of who your LOA will be until he returns.
I will be in the clinic later to help. I think it would be great to have a huddle to answer any questions. My personal cell phone is 480-404-8575, please keep this, I just ask that you do not give it out to patients.

Respectfully,

Brandi Benjamin, RN, BSN
Assistant Chief Nurse Officer-Ambulatory
4212 N. 16th Street
Phoenix, Az 85016

Office: 602-581-6581
Cellular: 480-404-8575

"I have seen that in any great undertaking, it is not enough for a man to depend simply

11:50 96

4 AK

Ashley

over and just talked to me. And telling me to get the corps involved... I was fuming. Like this is my career he wants to mess wish. Idc I'll leave IHS before I play these politics.

That is what it is politics

It should be about the patients

I hope to see you back. Keep me updated please.

I will I am more in the dark than you are

Mar 31, 2023 at 11:40

I am being detailed as policy officer effective Monday

Will you be on campus?

Aztec I believe I am getting "briefed" at 1400

Omg

Basically updating policies and doing COR duties and other contracts

How do you feel about this?

I'm assuming they are detailing you bc they want to get you to quit

iMessage

11:50 96

4

AK

Ashley

they want to get you to quit

Have no idea but it is just another form of retaliation

Very true

This sucks!

Reviewing my affidavit from my complaint to get it back to 3rd party investigator. Will see where that goes and yes it sucks!

Keep me in the loop!

Will do

You know where to find me on campus!

If they allow me to go on to campus

May 24, 2023 at 14:53

So did the police ever come talk to you about the alleged threat?

No

At work or my apartment

Ok just curious found out through affidavits that they called PD and filed

iMessage

11:51 96

4

AK

Ashley

No

At work or my apartment

Ok just curious found out through affidavits that they called PD and filed a report that I threatened Tonie Greve. Waiting for Phoenix PD to approve release of the report

I think your last message was for someone else

Whoops

Was the police supposed to meet me at work?

Oh okay, no only Jason ever talked to me

I'm sure they left me out of the narrative once I didn't agree with them

But it would be interested to see what the police report said

They supposedly called PD after Brandi left my office. PD records division said that due to the severity they have to get approval to release the report and they are unsure how long that would take.

Interesting

iMessage